

This matter was continued from May 13, 2026 to allow the petitioner to address issues with the petition. The court has reviewed the declaration filed June 8, 2026 and the Proof of Service filed June 26, 2026 which resolved all issues.

The court finds all notices have been given as required by law. The petition as supplemented is granted as prayed, except that release of liability and discharge shall be ordered only upon the filing of the *Ex Parte Petition for Final Discharge and Order* once assets are distributed pursuant to Probate Code § 11753.

LINE

4

**IN RE THE ESTATE OF JEAN PATRICIA WELKER, DECEASED
PR23-00216**

First and Final Accounting Report, Report of Administration, Petition for Administrative and Attorney Compensation, and for Final Distribution of the Estate

PREGRANT ORDER

This matter was continued from January 8, 2026 and May 13, 2026 to allow the petitioner to address issues with the petition. Nothing has been filed since the last hearing.

The court on its own motion continues this hearing one final time to September 9, 2026 at 9:30 a.m. in Department 22. Pending the continued hearing, the petitioner shall resolve the following issues:

1. Petition, item 13.b & Schedule 8: The personal representative's attorney seeks \$3,185 in extraordinary attorney fees. The statement provided does not comply with California Rules of Court, rule 7.702, as it does not state the "nature, necessity, success, costs in time, detail of the services performed, and the value of the services believed to warrant the additional fees."
2. Schedule 4: The fee base used does not include the losses on sale as required by Probate Code sections 10800(b) and 10810(b). Additionally, the fee base does not include the amount of the unclaimed property. The real property was appraised at \$455,000, but sold for \$409,000. Court Staff calculates the losses on sale as \$46,000 which makes the statutory compensation \$11,180. The petitioner shall explain why the amount should be different.
3. Schedule 5: The list of costs advanced by the personal representative includes a reimbursement of \$2,260.56 in travel costs. Travel and mileage costs are not reimbursable absent extraordinary circumstances. (Solano County Local Rule, rule 7.72(b)) The petitioner shall explain why the court should not order the petitioner to repay the estate for his reimbursement of his travel expenses without court authorization.

4. Exhibit 1: There is an assignment fee of \$20,000 paid to Dev Patel. This is in addition to payments made to this person on Schedule 6 which totaled \$982.72. The petitioner shall explain who Dev Patel is and why he was paid \$20,982.77 from escrow and by counsel. The petitioner shall explain if Dev Patel was hired by the estate to perform duties that the petitioner was to perform or expert services. The petitioner shall explain why the court should not consider a reduction in any compensation for the petitioner or surcharge him for any losses to the estate.

LINE

5

IN RE THE ESTATE OF MARCUS ALLEN FOX, JR., DECEASED
PR23-00531

Status Report on Administration (Probate Code § 12200)

PREGRANT ORDER

The status report filed April 30, 2026 is approved. The court orders that the estate's administration shall continue through April 30, 2027. Unless a petition for final distribution is on file by April 30, 2027, a second status report shall be filed by April 30, 2027.

The compliance hearing set for July 27, 2026 is re-set to August 3, 2027, at 11:00 a.m. in Department 22.

LINE

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IN RE THE ESTATE OF ELMET J. BATTISTE, DECEASED
PR24-00153

Petition for Final Distribution on Waiver of Account, Report of Administrator, Waiver of Administrator's Statutory Compensation, Verification

PREGRANT ORDER

This matter was continued from March 18, 2026 and May 7, 2026 to allow the petitioner to address issues with the petition. Nothing has been filed since the last hearing.

The court on its own motion continues this hearing to September 9, 2026, at 9:30 a.m. in Department 22. Pending the continued hearing, the petitioner shall resolve the following issues:

1. Petition, item 2: Pursuant to Probate Code section 12200(a), a personal representative is to file either a petition for final distribution or a status report within one year of the date letters are issued if no estate tax return is required, and within eighteen months of the date letters are issued if an estate tax return is required. Here, letters were issued on July 11, 2024. As the estate is of an insufficient size to require an estate tax return, the petition for final distribution or a status report was due by July 11, 2025. No